



CHAPTER xvi

An Act to provide for the sale or abandonment of the ferry undertaking of the Teignmouth and Shaldon Bridge Company and the winding up of the Company and for other purposes. [14th July 1949.]

WHEREAS by the Act 5 George 4. c. cxiv the Teignmouth 5 Geo. 4. and Shaldon Bridge Company (in this Act referred to as "the Company") were incorporated and authorised to build and maintain a bridge over and across the river Teign from Teignmouth to Shaldon with convenient approaches thereto to keep and maintain a boat for the conveyance of foot passengers across the river Teign and also to purchase a ferry over the said river from Teignmouth to Shaldon:

And whereas in pursuance of the powers conferred by section LVI (Company empowered to treat for the purchase of lands) of the said Act the Company have purchased the ferry over the said river between Teignmouth and Shaldon and have for many years operated the same:

And whereas further powers in relation to the said bridge and ferry were conferred upon the Company by the Teignmouth and Shaldon Bridge Act 1926: 16 & 17 Geo. 5. c. lxxi.

And whereas the county council of the administrative county of Devon in pursuance of their powers under section 53 of the Road Traffic Act 1930 purchased from the Company on the twenty-eighth day of October one thousand nine hundred and forty-eight the said bridge and all the Company's property rights and obligations connected with the said bridge: 20 & 21 Geo. 5. c. 43.

And whereas the issued capital of the Company consists of twenty thousand five hundred fully paid shares of one pound each:

And whereas the capital and other moneys now in the hands of the Company are greater than are necessary to provide for the conduct of the ferry undertaking and it is expedient that a portion of the capital of the Company should be repaid and that part of the funds of the Company should be invested pending the sale or abandonment of the ferry undertaking and the winding up of the Company in the manner provided by this Act:

And whereas it is expedient that the tolls and charges levied and made by the Company in respect of the said ferry should be increased:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1. This Act may be cited as the *Teignmouth and Shaldon Bridge Act 1949* and the *Teignmouth and Shaldon Bridge Act 1926* and this Act may be cited together as the *Teignmouth and Shaldon Bridge Acts 1926 and 1949*.

Interpretation.

2. In this Act unless the context otherwise requires—

“The Company” means the *Teignmouth and Shaldon Bridge Company*;

“The Act of 1824” means the Act 5 George 4. c. cxiv;

“The Act of 1926” means the *Teignmouth and Shaldon Bridge Act 1926*;

“The ferry” means the service of ferry vessels belonging to the Company and authorised by the Acts of 1824 and 1926;

“The ferry undertaking” means the ferry and all works and lands belonging to and held by the Company in connection therewith and all powers rights authorities and obligations of the Company under the Acts of 1824 and 1926;

“The Minister” means the Minister of Transport;

“The directors” means the directors of the Company.

Reduction
of capital.

3.—(1) Subject to confirmation by the High Court the Company with the authority of three-fourths of the votes of the holders of shares of the Company present in person or by proxy entitled to vote and voting at an extraordinary general meeting of the Company specially convened for the purpose may reduce

the capital of the Company in any way and in particular without prejudice to the generality of the foregoing power may pay off any paid-up capital which is in excess of the wants of the Company.

(2) The Company shall give not less than twenty-one days' notice of any extraordinary general meeting to be held for the purposes of this section and such notice shall specify the terms of the resolution or resolutions to be submitted to such meeting.

(3) For the purposes of this section the provisions of sections 67 68 70 and 71 of the Companies Act 1948 shall *mutatis* 11 & 12 Geo. 6. *mutandis* apply as if the Company were a company registered in c. 38. accordance with that Act.

4.—(1) Pending the sale of the ferry undertaking or the Investments. abandonment of that undertaking under the provisions of the section of this Act of which the marginal note is "Abandonment of ferry undertaking" the directors may invest in statutory securities any moneys or funds which are in excess of the wants of the Company.

(2) In this section the expression "statutory securities" means any securities in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875.

38 & 39 Vict.
c. 83.

5. As from the date of the passing of this Act the following Ferry tolls. ferry tolls for each crossing shall be substituted for those authorised by section 52 (Ferry tolls) of the Act of 1926 as set out in the Third Schedule to that Act (that is to say):—

For each person	...	...	Twopence halfpenny.
For each dog	...	...	One penny.

6.—(1) If it is represented by application in writing to the Revision Minister by the local authority of the district in which the ferry of tolls. is situate or by any person who in the opinion of the Minister is a proper person for the purpose or by the Company that under the circumstances then existing the ferry tolls authorised by the last preceding section of this Act or either of them should be revised the Minister if he thinks fit may make an order revising the said ferry tolls or either of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section.

(2) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require.

(3) Where upon an application for the revision of the ferry tolls or either of them an order has been made or the Minister has decided not to make an order no further application for the revision of the ferry tolls to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(4) Before making an order under subsection (1) of this section the Minister shall cause an inquiry to be held in reference thereto and the provisions of the section of this Act of which the marginal note is "Inquiries by Minister" shall apply to such inquiry as if it were an inquiry held in pursuance of that section:

Provided that in cases where no objection has been made to the application or where any objection which has been made has either been withdrawn or appears to the Minister to be of a trivial nature the Minister may if he thinks fit dispense with such inquiry.

(5) Section 54 (Periodical revision of tolls) of the Act of 1926 is hereby repealed.

Power of sale
of ferry
undertaking.

7.—(1) The Company may at any time sell and transfer the ferry undertaking and the lands buildings machinery ferry boats apparatus works and conveniences connected therewith or any part thereof together with the rights powers privileges and authorities of the Company in relation thereto to any authority body company or person on such terms and conditions as may be agreed between the Company and such authority body company or person:

Provided that no such sale or transfer of the ferry undertaking and the rights powers privileges and authorities of the Company in relation thereto shall be made without the consent of the Minister.

(2) When any such sale or transfer has been made all the rights powers privileges authorities obligations and liabilities of the Company in respect of the property or undertaking or part thereof sold or transferred as aforesaid shall be transferred to and vested in and may be exercised by and shall attach to the authority body company or person as the case may be to whom the same has been sold or transferred:

Provided that nothing in sections 63 to 94 (both inclusive) of the Act of 1926 shall extend or apply to any transferee of the ferry undertaking.

Abandonment
of ferry
undertaking.

8.—(1) On or at any time after the passing of this Act the Company (if they have not then sold or transferred the

ferry undertaking in pursuance of the last preceding section of this Act) or their successors may abandon the ferry undertaking whereupon all rights of user shall cease and be extinguished and the Company or their successors shall by virtue of this Act be released from all duties and obligations (if any) to maintain work and use a ferry service for passengers animals vehicles and goods between Teignmouth and Shaldon and from all duties and obligations to convey passengers animals vehicles and goods by means of the ferry.

(2) The Company or their successors shall give not less than three months' notice by advertisement published in a local newspaper circulating in the county of Devon of their intention to abandon the ferry undertaking.

(3) After the abandonment of the ferry undertaking the Company or their successors may sell the lands buildings machinery ferry boats apparatus works and conveniences connected therewith to any authority body company or person for such price and on such terms and subject to such conditions as may be agreed between the Company or their successors and the purchasers.

9.—(1) In the event of the sale of the ferry undertaking or the abandonment of that undertaking under the provisions of the section of this Act of which the marginal note is "Abandonment of ferry undertaking" the Company shall continue to exist only for the purpose of winding up their affairs and for that purpose the Company shall be deemed to have passed a special resolution for a members' voluntary winding up under the Companies Act 1948 but sections 143 and 342 of that Act shall not apply. Winding up of Company.

(2) It shall not be necessary for the directors to make any such declaration as is referred to in section 283 of the Companies Act 1948 but subject to the provisions of this section the Company shall be wound up under and in accordance with the provisions of the Companies Act 1948 applicable to a members' voluntary winding up as if in the case of the Company such declaration had been made but the provisions of subsections (3) (4) (5) and (6) of section 290 of the Companies Act 1948 shall not apply.

(3) The Company shall within one month after the sale of the ferry undertaking or the abandonment of that undertaking under the provisions of the section of this Act of which the marginal note is "Abandonment of ferry undertaking" give notice by advertisement in the London Gazette of the provisions of this section as to the voluntary winding up of the Company and the publication of the said advertisement shall be deemed to be compliance with the requirements of section 279 of the Companies Act 1948.

(4) Within three months after the sale of the ferry undertaking or the abandonment of that undertaking the Company shall convene and hold a general meeting for the appointment of one or more liquidators for the purpose of winding up their affairs and distributing their assets pursuant to section 285 of the Companies Act 1948 and may fix the remuneration to be paid to the liquidator or liquidators but section 305 of the Companies Act 1948 shall not apply.

(5) The provisions relating to notice of general meetings contained in Table A of the First Schedule to the Companies Act 1948 shall notwithstanding anything in any enactment relating to the Company apply to any meetings of the Company convened by the liquidator or liquidators of the Company.

Resolutions
of directors.

10. A resolution in writing signed by all the directors shall be as valid and effectual as if it had been passed at a meeting of the directors duly convened.

Inquiries by
Minister.

23 & 24 Geo. 5.
c. 51.

11. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him by this Act and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

Copy of Acts
to be
registered.

12.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and of the Act of 1926 and he shall retain and register them. If such copies are not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or officer of the Company who knowingly and wilfully authorises such default shall incur a like penalty.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Company on such copies being registered the fee of five shillings.

Costs of Act.

13. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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